

25STCV11123 25STCV11123

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MOTION FOR

TERMINATING SANCTIONS

The Court tenders the following

tentative decision in the matter Dustin Clemons v. Pinkerton Consulting & Investigations, Inc., et al., Los Angeles County Superior Court case number 25STCV11123, set for hearing on July 23, 2026. Sequoia Consultants, Inc. (Defendant) moves for an order imposing terminating sanctions against Dustin Clemons (Plaintiff). Plaintiff opposes the imposition of terminating sanctions. Defendant's motion for sanctions is granted in part: the Court imposes evidentiary sanctions.

A.

Legal Standard

Misuses of the discovery process

justify the imposition of sanctions. (Id., § 2030.030.)

Disobeying a court order to provide discovery constitutes misuse of the discovery process. (Id., § 2023.010, subd. (g).) Specifically, if a party fails to obey an order compelling a response to an inspection demand or interrogatories, the Court may impose "an issue sanction, an evidence sanction, or a terminating sanction." (Id., §§ 2030.290, subd. (c), 2031.320, subd. (c).) A court imposing an issue sanction may order that "designated facts shall be taken as established in the action in accordance with the claim of the party adversely affected by the misuse of the discovery process." (Id., § 2030.030, subd. (b).) An evidence sanction may prohibit the sanctioned party from introducing designated matters into evidence. (Id., § 2030.030, subd. (c).) In imposing a terminating sanction, a court may order one of the following: (1) the striking of pleadings or parts of pleadings; (2) the staying

of further proceedings by the offending party; (3) the dismissal of the action; or (4) a judgment by default against the offending party. (Id., § 2030.030, subd. (d).)

B. Discussion

Defendant requests monetary, evidentiary, issue, and terminating sanctions for repeated abuses of the discovery process. Specifically, Defendant seeks an order striking Plaintiff's complaint in its entirety with prejudice and awarding Defendant reasonable attorney's fees and costs. "[T]erminating sanctions are to be used sparingly, only when the trial court concludes that lesser sanctions would not bring about the compliance of the offending party." (R.S. Creative, Inc. v. Creative Cotton, Ltd. (1999) 75 Cal.App.4th 486, 496.)

Here, Defendant initially served Plaintiff with form interrogatories, special interrogatories, requests for production, and requests for admission on July 30, 2025. (Debus Decl. ¶ 2.) After Plaintiff failed to provide timely responses, the Court granted Defendant's motions to compel responses on October 23, 2025. (Ibid.) Plaintiff then served incomplete responses on November 17. (Id. ¶ 3.) After meet and confer efforts and multiple extensions, Plaintiff failed to provide further supplemental responses as promised. (Id. ¶¶ 3–4.) Defendant then filed motions to compel further responses, which the Court granted on January 29, 2026. (Id. ¶ 4.) Plaintiff's subsequent writ concerning the Court's orders to compel further responses was denied. (Id. ¶ 5.) Plaintiff served further responses on May 1, 2026, but continued to withhold documents he promised to produce. (Id. ¶ 6.) Plaintiff has failed to pay the ordered monetary sanctions. (Ibid.)

The Court finds that Plaintiff's actions in failing to provide discovery and pay sanctions constitute failure to obey Court orders to provide discovery. Thus, Plaintiff has engaged in misuse of the discovery process, and sanctions are warranted. (See Code Civ. Proc., § 2023.010, subd. (g).) Monetary sanctions are inadequate, given that they have failed to force compliance on Plaintiff's part and have not even been paid when imposed. But terminating and issue sanctions are too harsh. The Court generally seeks to impose sanctions on an incrementally increasing scale of harshness, and here evidentiary sanctions are most appropriate. Thus, the Court orders that Plaintiff will be prohibited from introducing evidence in support of his claims which has not already been produced or is produced within 15 days of this Order, as described in Defendant's notice of

motion under points (B)(i)–(xiii). The Court does not impose issue or terminating sanctions, but may consider them if there is a misuse of the discovery process.

C. Conclusion

The Court grants Defendant's motion in part.